HISPANIC DENTAL ASSOCIATION

2 Talon Court
Sewell, NJ 08080
Phone: (856) 353-9459
www.hdassoc.org

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Sewell, NJ

Email Link: MedicalDebtRFI_2023@cfpb.gov

Date 8-25-2023

Subject Line: Docket No. CFPB–2023–0038

Salutation: Director Chopra,

The Hispanic Dental Association ("HDA") is pleased to submit these comments in response to the Request for Information issued by the Department of Health and Human Services, the Department of Treasury, and the Consumer Financial Protection Bureau (the "Agencies") ("RFI"). HDA is the leading voice for Hispanic Oral Health, providing service, education-research, advocacy, and leadership for all healthcare professionals to promote the overall health of the Hispanic/Latinx and underrepresented communities. We are driven by our vision to empower healthcare professionals to increase oral health equity and improve health care quality in the Hispanic/Latinx and underrepresented populations.[1]

It is the HDA's mission to promote the overall health of the Hispanic/Latinx and other underrepresented communities, and we offer these comments with that in mind. Our members strongly support the goal of ensuring fair treatment to our patients, both by health care providers as well as by financial services providers. We generally believe these objectives are being met, at least as it relates to the patients our members see on a daily basis. With that in mind, we are concerned that the RFI suggests that providers, like dentists, habitually provide poor service to their patients as it relates to treatment, billing, insurance, and payments. This is, of course, not the case as it relates to our members. Dentistry is a word-of-mouth business, if you will pardon the pun, and it is not difficult for patients to leave a bad practice. A dentist who treats his or her patients poorly is not likely to be a successful dentist. To the extent the Agencies believe that there are improvements that can be made in the marketplace, the HDA stands ready to assist. However, the apparent assumption that there are material deficiencies with how our members treat their patients, including how they may make financing options available, is not accurate.

We also want to note that the RFI recognizes that dentists are part of a larger medical community providing essential medical services. HDA strongly agrees with the Agencies on this point. We believe that dentists' status as medical providers providing critical care has been true since the outset of the profession. This is an important fact because as to the government's response to the COVID pandemic, one or more of the Agencies did not recognize the dental profession as providing essential or medical services. The government agencies in charge of healthcare missed the importance of oral healthcare providers in the management of the Covid Pandemic. But the deputy Surgeon General, who is the highest-ranking oral Healthcare officer of our Government reach out to oral healthcare leaders and stakeholder along with key head of healthcare to coordinate efforts to collaborate and support the healthcare efforts which at the time needed our extra input and support. It was thanks to this initiative that Dentist started helping in the vaccination process that at first was not allowed due to misinformation by the US Healthcare branches. Because of this type of mishandling, although with good intentions, it concerns the Hispanic Dental Association that our communities would be negatively affected by your initiatives to interfere with one of the most innovative and powerful financial tools our members use to fight inequities in healthcare. Regardless, we are pleased to see that the Agencies appropriately deem dental care to be medical care.

Turning more to the substance of the RFI, our experience indicates that consumers *greatly* appreciate the ability to use credit when paying for dental care. This is true regardless of whether payment is made with a Visa or Mastercard, or with a product like CareCredit. There are a variety of dental needs our patients have that may not be covered by insurance but are strongly desired and or needed. Many patients could not afford the care if they had to pay by cash or check out-of-pocket. For those consumers who are looking at their financial options, we are pleased that many of our members can suggest credit options like CareCredit. There is no question that products like CareCredit make dental care more affordable and more available to more of our members' patients. We can say with certainty that many of our members' patients would *not* be able to obtain appropriate dental care without access to CareCredit. In fact, our members' ability to offer access to various credit products aligns perfectly with our vision of increasing oral health equity and improving health care quality in the Hispanic/Latinx and other underrepresented communities. Without access to credit, including CareCredit, access to dental care suffers.

We urge the Agencies to consider the benefits our members' patients receive when they can access credit. HDA strongly believes that the cause of oral health equity is advanced through the use of CareCredit.

Sincerely,

Manuel A. Cordero DDS

Executive Director & Chief executive Officer
Hispanic Dental Association

MISSION

As the leading voice for Hispanic Oral Health, we provide service, education-research, advocacy, and leadership for all healthcare professionals to promote overall health of the Hispanic/Latinx and other underrepresented communities.